



Bradford Corporation Act 1971

CHAPTER xlii

ARRANGEMENT OF SECTIONS

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ELIZABETH II



1971 CHAPTER xlii

An Act to provide for the making of agreements between the lord mayor, aldermen and citizens of the city of Bradford and the Yorkshire Ouse and Hull River Authority with respect to the construction and use of certain waterworks and the discharge of water therefrom; to confer further powers upon the Corporation in respect of their water undertaking; to alter the name of the said Authority; and for other purposes.

[27th July 1971]

WHEREAS the city of Bradford (hereinafter referred to as “the city”) is a county borough under the management and local government of the lord mayor, aldermen and citizens of the city (hereinafter referred to as “the Corporation”):

And whereas by virtue of divers enactments the Corporation are empowered and required to supply water to the inhabitants of the city and of a considerable area in the neighbourhood thereof:

And whereas the demand for water within the limits of supply of the Corporation is increasing and is likely further to increase and it is necessary to augment the resources available to meet this demand:

1963 c. 38

And whereas the Yorkshire Ouse and Hull River Authority (hereinafter referred to as "the River Authority") were constituted in pursuance of the Water Resources Act, 1963 (hereinafter referred to as "the Act of 1963") as the authority responsible for water conservation, land drainage, prevention of pollution and the management and improvement of fisheries within an area which includes the limits of supply of the Corporation:

And whereas as the authority for water conservation within their area the River Authority are charged by the Act of 1963 with the duty of taking such action as they consider necessary or expedient for the purpose (inter alia) of augmenting water resources in their area:

And whereas the demand for water within the area of the River Authority is increasing and is likely further to increase and it is necessary for the River Authority to augment water resources in their area:

1854 c. cxxiv.

And whereas the Corporation own as part of their water undertaking a compensation reservoir known as the Grimwith Reservoir which was constructed under the authority of the Bradford Waterworks Act, 1854:

1945 c. 42.

And whereas the Corporation and the River Authority have agreed in principle to a scheme of works under which, subject to obtaining the necessary powers under the Water Act, 1945, the Act of 1963 and otherwise, the Corporation would construct certain waterworks, including an enlargement of the said reservoir:

1971 c. 34.

And whereas it is intended that, subject to obtaining the necessary powers under the Act of 1963, the Water Resources Act 1971, and otherwise, the said reservoir as proposed to be enlarged should be used in part for augmenting the water resources of the Corporation and in part for the purpose of enabling the River Authority to regulate the flow of water in the river Dibb and the river Wharfe:

And whereas doubts have arisen with regard to the power of the Secretary of State to authorise the Corporation to construct the said waterworks by order under the Water Act, 1945, the power of the Corporation to enter into an agreement with the River Authority with respect to the matters hereinbefore mentioned under section 81 of the Act of 1963 and the power of the River Authority to enter into an agreement with the Corporation with respect to the discharge of water from the said reservoir as proposed to be enlarged and it is expedient that such doubts should be removed:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed by the Corporation: 1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

1.—(1) This Act may be cited as the Bradford Corporation Act 1971. Short and collective titles.

(2) The Bradford Corporation Water Acts and Orders, 1854 to 1970, and this Act may be cited together as the Bradford Corporation Water Acts and Orders, 1854 to 1971.

2.—(1) In this Act, unless the subject or context otherwise requires— Interpretation.

“ the Act of 1963 ” means the Water Resources Act, 1963; 1963 c. 38.

“ the city ” means the city of Bradford;

“ the Corporation ” means the lord mayor, aldermen and citizens of the city acting by the council of the city;

“ functions ” includes powers and duties;

“ the Grimwith Reservoir ” means the reservoir of the Corporation known as the Grimwith Reservoir constructed under the authority of the Bradford Waterworks Act, 1854; 1854 c. cxxiv.

“ the River Authority ” means the Yorkshire River Authority;

“ the scheme ” means the scheme of works referred to in the Preamble to this Act.

(2) Unless the subject or context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3.—(1) The Corporation and the River Authority may for the purposes of or in connection with the scheme enter into an agreement with respect to any matter mentioned in subsection (1) of section 81 of the Act of 1963 and any such agreement may, with Agreements between Corporation and River Authority.

the consent of the Secretary of State, contain provisions with respect to the discharge of water from the Grimwith Reservoir, as proposed to be enlarged in pursuance of the scheme.

1945 c. 42.

(2) The functions of the Corporation in relation to their water undertaking shall for the purposes of sections 23 and 24 of the Water Act, 1945, be deemed to include the construction, alteration and maintenance of waterworks and works connected therewith, the borrowing of money and the acquisition of land for the purpose of implementing an agreement made under this section.

(3) Subsections (3) to (6) of section 81 of the Act of 1963 shall apply to agreements made under this section as they apply to agreements made under that section, with the modification that the said subsection (3) shall have effect as if for the reference to the River Authority there were substituted a reference to the River Authority and the Corporation.

Change of
name of
River
Authority.

4.—(1) On and after the passing of this Act the name of the River Authority hitherto known as the Yorkshire Ouse and Hull River Authority shall be “the Yorkshire River Authority” and accordingly subsection (2) of section 8 of and Schedule 1 to the Act of 1963 shall have effect as if for the words “The Yorkshire Ouse and Hull River Authority” there were substituted the words “The Yorkshire River Authority”.

(2) The River Authority by their new name shall have, exercise, enjoy and be subject to all powers, rights, privileges, immunities, exemptions, duties and liabilities which at common law by any enactment or otherwise they had exercised, enjoyed or were subject to or would have had, exercised, enjoyed or been subject to by their original name.

(3) All enactments, byelaws, schemes (whether confirmed or not confirmed), fiats, awards, judgments and decrees and all bonds, conveyances, covenants, deeds, mortgages, securities, contracts, agreements, resolutions, orders and notices and other instruments and documents relating to the River Authority by their original name shall from and after the passing of this Act have effect as if throughout the same respectively wherever the original name of the River Authority occurs the new name of the River Authority were substituted.

(4) Notwithstanding the change of name effected by this Act any action, arbitration, prosecution or other proceeding, civil or criminal, which is pending by or against the River Authority by their original name immediately before the passing of this Act shall not abate or be discontinued or be prejudicially affected by the change of name of the River Authority but shall continue and take effect both in favour of and against the River Authority in like

manner to all intents and purposes as if the same had been respectively commenced or instituted by or against the River Authority by their new name and in any notice, warrant, summons, writ or other instrument used after the passing of this Act in or for the purposes of any such action, arbitration, prosecution or other proceeding as aforesaid the River Authority may be described by their new name as if they had been originally constituted, incorporated or called by their new name. Nevertheless any such notice, warrant, summons, writ or other instrument shall not be invalidated, prejudiced or affected by reason of the River Authority being therein called by their original name.

(5) Notwithstanding the change of name effected by this Act everything before the passing of this Act done, suffered or confirmed under or by virtue of any other enactment shall be as valid as if this Act were not passed and the change of name effected by this section shall accordingly be subject and without prejudice to everything so done, suffered or confirmed before the passing of this Act and to all rights, liabilities, claims and demands then present or future which if the change of name had not happened and this Act had not been passed would be incident to or consequent on anything so done, suffered or confirmed and the River Authority by their new name may sue or be sued with respect to any such right, liability, claim or demand as aforesaid.

5.—(1) The costs, charges and expenses preliminary to, and of Costs of Act. and incidental to, the preparation of and the application for, and the obtaining and passing of this Act, or otherwise in relation thereto, as taxed by the taxing officer of the House of Lords or of the House of Commons, shall be paid by the Corporation and the River Authority in such manner as may be agreed between them.

(2) The Corporation may borrow without the consent of any sanctioning authority the sum requisite for the payment of so much of the said costs, charges and expenses as is payable by them under subsection (1) of this section and they shall repay all moneys so borrowed within such periods as the Corporation may determine not exceeding five years from the day of borrowing.

(3) The provisions of Part IX of the Local Government Act, 1933, so far as they are not inconsistent with this Act shall extend 1933 c. 51. and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of the money borrowed shall as respects that money be the period fixed by the said Part IX.

(4) So much of the said costs, charges and expenses as is payable by the Corporation under subsection (1) of this section shall be paid out of the general rate fund of the city or out of moneys to be borrowed by them under the powers of this section.

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